

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 203 of 1997

Mojibar Rahman and others

----- The plaintiff-appellant-petitioners

=Versus=

Md. Shahjahan Howlader

---The defendant-appellant-opposite-parties.

Mr. Md. Shahidul Islam with

Mr. Mohammad Riaz Hossain Sikder,
Advocates

----- For the petitioners

Ms. Syeda Nasrin, Advocate,

----- For the opposite-parties.

Heard on 15.01.2017, 17.01.2017 and

Judgment on 06.02.2017

At the instance of the present plaintiff-appellant-petitioners, Mojibar Rahman and others, this Rule has been issued calling upon the opposite-party No.1 to show cause as to why the impugned judgment and decree dated 14.08.96 and 21.08.96 respectively passed by the Subordinate Judge, Artharin Adalat, Barisal, in Title Appeal No. 25 of 1990 reversing the judgment and decree dated 11.01.1990 and 18.01.90 respectively passed by the Assistant Judge, Bakergonj, Barisal in Title Suit No.72 of 1984 should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite-party No.45 and others as the plaintiffs filed the Title

Suit No.52 of 1973 for setting aside the exparte decree dated 21.09.1970 passed in Title Suit No.195 of 1969 (previously Title Suit No.36 of 1966) by the learned Munsif, (now the Assistant Judge), 2nd Court, Barisal in favour of the present defendant No.3, Md. Shahajahan and another. The said suit was subsequently renumbered as the Title Suit No.52 of 1973 and thereafter also renumbered as the Title Suit No.72 of 1984.

The plaintiff's case in short is that, the suit land originally belonged to one Hachenuddin and Korban Howlader in equal shares and the C.S. record of rights has been mutated in their names. The said Hachenuddin died leaving behind his son Aminuddin by his 1st wife and Moslem Ali by his 2nd wife and 2 daughters namely Surjya Bhan Bibi and Bhanu Bibi among others. The said land was never owned by Shadai Howlader as he had no daughters namely Ayetun Nessa and Joytun Nessa, therefore, no question arises as to inheritance by their successors, as such, the present defendant Md. Shahjhan son of Imamuddin Howlader did not have any entitlement upon the suit land, as he did not have any rights, title or possession and the deeds showing his title are collusive and fraudulent. On the basis of the abovementioned entitlement the Title Suit No.36 of 1966 was originally filed and an exparte decree was obtained on 20.09.1997 by practicing fraud upon the Court as the

entire proceeding of the suit are collusive and void, as such, the expate decree in the title suit is liable to be set aside.

The suit has been contested by the present defendant-appellant-opposite-parties Md. Shahjhan by filing a written statement contending inter alia, that the suit is not maintainable, because the decree passed in the Title Suit No.195 of 1969 was lawfully. It is further contended that Shadai Howlader died leaving behind his son Hachenuddin and two daughters namely Ayetun Nessa and Joytun Nessa who died leaving behind Azahar Ali and Abdur Rahman as their sons, who sold the suit land to the said Md. Shahjhan and C.S, S.A. and R.S records have been published erroneously, therefore, the suit should be dismissed.

After hearing the parties the learned Assistant Judge, Bakergonj, Barisal decreed the suit by his judgment and decree dated 18.01.1999. Being aggrieved the present opposite-parties preferred the Title Appeal No.25 of 1999 in the Court of the learned District Judge, Barisal which was heard by the learned Subordinate Judge, Barisal on transfer, who by his judgment dated 21.08.1996 allowed the appeal thereby reversing and setting aside the judgment and decree passed by the trial Court. This revisional application has been filed under section 115(1) of the Code of Civil Procedure challenging the said judgment of the appellate Court below and the Rule was issued thereupon.

Mr. Md. Shahidul Islam, the learned Advocate appearing with Mr. Mohammad Riaz Hossain Sikder, the learned Advocates for the present petitioners submits that the learned appellate Court should have held that the learned trial Court rightly found that the plaintiff No.1 Moslem Howlader inherited the suit property from his father Hazi Hochenuddin and the plaintiff Nos.2-5 acquired the suit property through gift from Surjya Bhanu Bibi and Bhanu Bibi daughters of late Hazi Hochenuddin and that Hazi Hochenuddin's father Shadai Howlader had no interest in the suit zama and Shadai Howlader had no daughter namely Aytun Nessa and Joytun Nessa and their sons namely Azahar Ali and Abdur Rahman did not acquire any title in the suit lands and that Shahjahan (Defendant No.3) did not acquire any title in the suit land through deeds from them and those are false and fake deeds which cannot be acted upon in any way.

He also submits that the learned Appellate Court having failed to discuss and consider the facts, circumstances and the evidence on record erred in law resulting in an error in decision occasioning failure of justice in holding that there is no practice of fraud in obtaining the exparte decree in Title Suit No.195 of 1969 on 21.08.1990. The learned Advocate further submits that the present plaintiff-petitioners are in possession and they have been paying rent as R.S record of right in their

favour, as such, under section 114(A) of the State Acquisition and Tenancy Act, such records of rights is true unless and until the same is disproved by anybody, therefore, the exparte decree in the Title Suit No.195 of 1969 has been obtained by practicing fraud without serving notices upon them, thus the Rule should be made absolute.

This Rule has been issued by this Court on 21.01.1997 and the notices have been served upon the opposite-parties, in particular, the opposite-party No.1 much earlier and the Rule was made ready for hearing on 05.03.2002 after taking all the necessary steps but the present opposite-parties failed to appoint any learned Advocate for such a long period of about 20 years. However, today MS. Syeda Nasrin, the learned Advocate appeared with a Vokatnama and an application to contest the Rule. I am surprised to hear the learned Advocate for the opposite-party No.1 to make a submission that the opposite-party No.1 was not aware of this Rule for a long period of 20 years and he came to know that the hearing has been concluded in this matter on 15.01.2017, when another set of Lawyers appeared and sought time. However, MS. Syeda Nasrin, the learned Advocate appearing for the opposite-party No.1 submits that the trial Court failed to understand and consider the evidence produced by the opposite-parties as plaintiffs in the Title Suit No.195 of 1969. However, the appellate Court below after controverting the findings of

the trial Court allowed the appeal filed by the present opposite-party No.1 after taking into consideration all the relevant evidence thus the Rule should be discharged.

The learned Advocate also submits that the learned appellate Court below rightly considered that the original Title Suit No.36 of 1966 was filed for partition and the present petitioner as the defendant in that the said suit could have sought saham in the said suit instead of filing the present suit for title because a Court can give share of land on the basis of any document as such the suit Title Suit No.52 of 1973 for setting aside the decree dated 21.09.1970, which is misconceived the Rule is liable to be discharged.

Considering the submissions of the learned Advocates appearing for the respective parties and considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with annexures therein, in particular the impugned judgment and decree passed by the appellate Court below and also considering a huge volume of lower Court records, it appears to me that the present petitioner and others filed the Title Suit No.52 of 1973 for setting aside an exparte decree in the original Partition Suit No.36 of 1966, which was renumbered as the Title Suit No.195 of 1969 and finally it was renumbered as Title Suit No.72 of 1984 the said suit was filed claiming

that the proceeding of the Title Suit No.36 of 1966 (renumbered as Title Suit No.72 of 1984) were collusive and colourable exercise on the part of the present opposite-parties and the exparte decree passed on 20.09.1970 was obtained by practicing fraud and also by misleading the Court, whereas, the present opposite-parties counter claimed that the Title Suit No.36 of 1966 had proceeded as per the provision of law and decree under the provision of law.

From the above given conflicting factual aspects I have to decide whether the trial Court decreed the suit after considering all the relevant evidence both documentary and oral by way of deposition. In this regard, I have examined the judgments passed by the learned trial Court and also by the appellate Court below as well as the lower Court record regarding the Title Suit No.36 of 1966. It appears to me that the said suit was filed earlier claiming share proportionate on the suit land out of the total lands mentioned in the schedule of the plaint which reads as follows :-

“ (ক) তপছিল বিভাজ্য ভূমিঃ-

১। ষ্টেশন বাখরগঞ্জ ৬৮ নং জে,এল চাপরকাঠি অধীন ১৭৭ নং এস, এ, খতিয়ান মোতালক ৪৮৮/৪৪৭/৪৬১ দা-গ ০.২৬ শতাংশ ভূমি ৪৪৭ দা-গর এওয়াজ ৩৩২/৪৬১ দা-গর এওয়াজ ৪৪৭ বাদী বিবাদীগ-গর এজমালী জমি ব-ট।

২। ষ্টেশন ঐ ঐ মৌ-জ ২৭৭ এস, এ, খতিয়ান মোতালক ৫১৮ দা-গ ০.৬৪ শতাংশ ভূমি।

৩। ষ্টেশন ঐ ঐ মৌ-জ ৬ নং এস, এ, খতিয়ান -মোতালক ৩৩১/৯৮০ দা-গ ০.৮৬ শতাংশ ভূমি।

৪। ঐ ষ্টেশন ঐ মৌ-জ ২৭৬ নং এস, এ, খতিয়ান মোতালক ৬৫৮/ ৯২৫/ ৯৪০/ ৯২৯ দা-গর ষোল আনী ৯৩০ দা-গর ১১০ আনী জমির পরিমান ১-১৮ শতাংশ ঐ ৯৩০ দাগের বক্রী অর্দ্ধাংশ ১৭৪ নং এস, এ, খতিয়া-নর দখিলকার ১/ ১৬/ ১৭/ ২০ নং বিবাদীগ-নর ব-ট।

৫। -ষ্টেশন ঐ ঐ মৌজার ২৭১ নং এস, এ খতিয়ান মোতালক ৫২৫/ ৫৩১/ ৫৫৪/ ৬৭৫/ ৮৮৭/ ৯৬০ দা-গর ষোল আনী ও ৫৩২/ ৫৪১ দাগ হা-য়র হিং ১১০ আনী জমির পরিমান ২-০৯ শতাংশ ৫৩২ ও ৫৪১ দাগ হায়ের বক্রী হিং ১১০ আনী অংশ ১৮০ নং এস, এ, খতিয়ান মোতালক ১৬-২০ নং বিবাদীগ-নর না-ম রেকর্ড হইয়া-ছ।

৬। ষ্টেশন ঐ ঐ মৌজার ১৭৬ নং এস, এ, খতিয়ান ৪৩২/ ৯৭৬/ ৯৭৭/ ৯৯০ দা-গ ১-৭৬ শতাংশ।”

“(খ) তপছিল বাদীগ-নর কবলাকৃতবি-রাধীয় ভূমিঃ-

১। ষ্টেশন বাকরগঞ্জ ৬৮ নং জে, এল ঢাপরকাঠি মৌজার ১৭৭ নং এস, এ, খতিয়ান মোতালক ৪৪৮/ ৪৪৭/ ৪৬১ দা-গ ০.২৬ শতাংশ এওয়াজ ম-ত ৩৩২/ ৪৪৭ দাগ হই-ত রেজিস্ট্রিকৃত কবলা মূ-ল খোষ খরিদ সূত্রে ০.০৪ শতাংশ ভূমি-ত স্বত্ববান দাখিলকার বাদীগন।

২। ষ্টেশন ঐ মৌ-জ ঐ ২৭৭ নং এস, এ, খতিয়ান মোতালক ৫১৮ দা-গ ০.৬৪ শতাংশ ভূমির মধ্যে ১৫।। শতাংশ ভূমিতে খোষ খরিদ সূত্রে বাদীগন।

৩। ষ্টেশন ঐ -মৌজা ঐ ৬ নং এস, এ, খতিয়ান মোতালক ৩৩১/ ৯৮০ দাগে ০.৮৬ শতাংশ ভূমি। উক্ত ভূমির ম-ধ্য ২.৩৩ শতাংশ ভূমি-ত খোষ খরিদ বাদী।

৪। ষ্টেশন -মৌজা ঐ ২৭৬ নং এস, এ, খতিয়ান মোতালক ৬৫৪/ ৯২৫/ ৯৪০/ ৯২৯ দা-গর -ষাল আনী ৯৩০ দা-গর ১১০ আনী জমির পরিমান ১-১৮ শতাংশ ঐ ৯৩০ দাগের বক্রী অর্দ্ধাংশ ১৭৪ নং এস, এ, খতিয়ান দাখিলকার ১/ ১৬/ ১৭/ ২০ নং বিবাদীগ-নর ব-ট। উক্ত ভূমির ম-ধ্য ০.৪১ শতাংশ ভূমি খোষ খরিদ সূত্রে বাদীগন।

৫। ষ্টেশন ঐ ঐ মৌ-জ ২৭১ নং এস, এ, খতিয়ান মোতালক ৫২৫/ ৫৩১/ ৫৫৪/ ৬৭৫/ ৮৮৭/ ৯৬০ দা-গর ষোল আনী ও ৫৩২/ ৫৪১ দাগ হা-য়র ১১০ আনী জমির পরিমান ২-০৯ শতাংশ। ৫৩২ ও ৫৪১ দাগ হায়ের বক্রী হিং ১১০ আনী অংশ ১৮০ নং এস, এ, খতিয়ান মোতালক ১৬-২০ নং বিবাদীগ-নর। উক্ত ভূমি মধ্যে $৫৯\frac{1}{4}$ শতাংশ খোষ খরিদ সূত্রে দাখিলকার বাদীগন।

৬। ষ্টেশন ঐ মৌ-জ ঐ ১৭৬ নং এস, এ খতিয়ান মোতালক ৪৩৩/ ৫১৯/ ৯৭৫/ ৯৭৮/ ৯৯২/ ৪৩২/ ৯৭৬/ ৯৭৭/ ৯৯০ দা-গ ১-৭৬ শতাংশ। উক্ত ভূমির মধ্যে ৩২।।০ শতাংশ ভূমিতে খোষ খরিদ সূত্রে বাদীগন।”

I have also examined the order sheet of that suit wherein I found that the defendant appeared and contested the suit. The learned Court failed to serve the notices upon the defendant Nos.36-42. It also appears that an Advocate Commissioner was appointed by the Court to submit a report as to the share or sahams of the plaintiffs, defendant Nos.16(ka)

and 31 in the said suit. However, on 21.09.1970 the suit was decreed without considering the entitlement and the record of rights published in the C.S, S.A. and R.S. record of right which are in favour of the present plaintiff-petitioner. The said decree was passed exparte against the plaintiff-petitioners, who have not contested the said suit as the present petitioners were not notified by way of service of notice.

Regarding the entitlement of the schedule land this Court would not enter into detail because the suit has been filed for a declaration that the original Title Suit No.36 of 1966, which was eventually renumbered as Title Suit No.72 of 1984, therefore, claimed to set aside the said decree. It is only to be focused by this Court. I have carefully examined that the plaintiff No.1 Moslem Howlader inherited the suit land from his father Hochenuddin and the plaintiff Nos.2-5 acquired entitlement through deed of gift from Surjya Bhanu Bibi and Bhanu Bibi, who are the daughters of Hochenuddin and they are in possession of the suit land, their right have been established through the said deed of gift which has been exhibited. On the other hand, the partition suit being Title Suit No.36 of 1966 and subsequently renumbered as Title Suit No.195 of 1969 was regarding the land as mentioned above are the land of the Title Suit No.72 of 1984. Now the question is whether the said partition suit was decreed after taking all the necessary steps for decreeing the suit.

The petitioner claimed that the summons were not served but suppressing the same summons the present opposite-parties obtained the decree by misleading the Court on 21.09.2070 and the present suit was filed after knowing the said decree from the other persons and obtaining certified copy thereon on 07.10.1972. In this regard, I am of the opinion that suppression of summons by practicing fraud vitiates the purpose of a decree and validity of such decree, as it becomes always questionable. It is also a matter that suppression of such important as that of a proceeding takes away right of a person and opportunity to his or her case. In the instant case, the present opposite-parties filed the Title Suit No.36 of 1966 with a prayer for sahams in the land, but the sahams has been given by decreeing the suit exparte i.e. without allowing the defendant of that suit to claim saham or share of the land, therefore, the learned trial Court decreed the suit in order to set aside that decree. The judgment and decree passed in the Title Suit No.195 of 1969 failed to appreciate the legal entitlement of the present plaintiff-petitioner after examining the document produced in the Court, which have been exhibited in the present case.

However, the learned appellate Court below reversed the judgment finding that the present plaintiff-petitioners could have sought share or saham in the Title Suit No.195 of 1969 instead filing the present

suit, as such allowed the appeal. After examining the conflicting judgment I consider that the appellate Court committed an error of law in considering that the required summons were not served and the plaintiff in the Title Suit No.195 of 1969 did not have required documentary evidence in support of their entitlement.

Now let me examined the judgment and decree passed by the learned Courts below. The learned trial Court came to a conclusion to decree the suit lawfully on the basis of the following findings:-

“স্বীকৃত ম-ত ৩ নম্বর বিবাদীর কবলা দাতা-দর না-ম বা তাহা-দর পূর্ববর্তী-দর নামে কোন প্রকার রেকর্ড নাই। তাহা স্বত্ত্বেও কেমন করিয়া ৩ নম্বর বিবাদী অর্থাৎ ১৯৫/৬৯ নম্বর মোকদ্দমায় স্বত্ত্বের ঘোষণা ব্যতীরেকে ৩১/১৬ (ক) নম্বর বিবাদী হিসাবে পৃথক ছাহামের ডিক্রী পাইলেন।

এই ক্ষেত্রে বর্তমান মোকদ্দমার ৩ নম্বর বিবাদী নিবেদন করেন যে, বন্টনের মোকদ্দমায় বাদীপক্ষ ও বিবাদী পক্ষ সমান মর্যাদা সম্পন্ন। যদিও বন্টন-র মোকদ্দমায় বাদীপক্ষ এবং বিবাদীপক্ষ একই মর্যাদা সম্পন্ন তবুও অবশ্যই তাহাদিগকে স্বত্ত্ব প্রমাণের পর বন্টনের ডিক্রী পাইতে অধিকারী। মোকাম বরিশাল ২য় মুনসেফী আদালতের ১৯৫/৬৯ নম্বর মোকদ্দমায় ৩১/১৬(ক) এবং বর্তমান মোকদ্দমার ৩/৪ নম্বর বিবাদী তাহা-দর কবলা খরিদা স্বত্ত্ব আ-দী প্রমানিত হয় নাই। এমন বিবাদী কিংবা অন্য কোন বিবাদী তাহা-দর স্বত্ত্ব স্বীকার ক-রন নাই। সুতরাং এইক্ষেত্রে বিরোধীয় ডিক্রী আইনত: বলা যায় না ইহা ছাড়া এমন কোন প্রমান ৩ নম্বর বিবাদীপক্ষ আনয়ন করেন নাই যাহার ভিত্তিতে প্রমানিত হয় যে, ৩ নম্বর বিবাদী পক্ষ নালিশী ভূমির দখল পাইয়া-ছেন। অর্থাৎ বি-রাধীয় ডিক্রি যে জারী হইয়াছে এমন প্রমান আদালতে আসে নাই। সুতরাং বিরোধীয় ডিক্রী রদ ও রহিত যোগ্য।”

On the other hand, the learned appellate Court below came to an unlawful conclusion to allow the appeal by setting aside the judgment

and decree passed by the learned trial Court on the basis of the following findings:-

“পর্যালোচনায় দেখা গিয়াছে বিজ্ঞ নিম্ন আদালত ডিক্রী রদের মামলায় ব্যাপক অ-র্থ মামলার মেরি-ট বিচার বি-শ্লষন করিয়া-ছেন। মূলত: ১৯৫/৬৯ নং দেওয়ানী মামলার অর্জিত ছাহামের ডিক্রীকে Exparte decree হিসা-ব দেখা যায়। অনুরূপ ডিক্রী ক্ষেত্রে Merit এ বিচার আবশ্যিক। তর্কিত ইং ২১-০৯-১৯৭০ তারিখের ছাহামের ডিক্রী Summons suppression এর মাধ্য-ম Fraudulently অর্জিত হয় নাই। পর্যা-লাচনায় বি-বচিত যে, বাদীর Claim ডিসমিস হওয়ায়, বিবাদীর ছাহাম প্রাপ্তি বেআইনী হইয়া-ছ ম-র্ম বাদী রেসপ-ন্ডন্ট পক্ষ আপী-ল যে দাবী ক-রন তাহা সমর্থন যোগ্য ন-হ। এ প্রসং-গ বি-বচিত হয় বাদীর খারিজ সংক্রান্ত আদেশের ডিক্রী না হইলেও বিবাদীর অনুকূলীয় ইং ২১-০৯-১৯৭০ তারি-খর ছাহাম সংক্রান্ত ডিক্রী Drawn up হই-ত পা-র। মূলত: বাদীর অনুপস্থিতির কার-ণ ১৯৫/৬৯ নং মামলায় বাদী প-ক্ষর শেয়ার আ-ছ কিনা তাহা নির্দ্ধারিত হয় নাই এবং বিবাদীর উপস্থিতি-ত তাহার দাবীকৃত: শেয়ার ascertain করা হয় এবং সেক্ষেত্রে বিবাদীর বর্ণনা আরজী হিসাবে বিবেচ্য। ১৯৫/৬৯ (দ:) নং মামলায় কোর্ট ফি প্রদা-ন সাহাম প্রার্থী ১৬(ক)/৩১ নং বিবাদীর বর্ণনার কেস ও ছাহা-মর দাবী প্রমাণিত হওয়ার স্বপ-ক্ষ মামলায় স্বাক্ষ্য প্রমাণ ছিল। তর্কিত মামলায় বলা হয় নাই বাদীর মামলা স্বত্ব দখল হীনতার কার-ণ প্রমাণিত ন-হ বরং বাদী প-ক্ষর স্বাক্ষ্য প্রমা-ণর অভা-ব তৎ প-ক্ষর দাবী-ক Dismiss করা হইয়া-ছ।”

After examining the above judgments, I consider that the learned appellate Court below committed an error of law by stating that the present plaintiff-petitioners were not successful in proving the entitlement upon the suit land. In my view, the plaintiff-petitioners could successful prove in the present case as to their entitlement and the learned trial Court lawfully came to conclusion to decree the suit in their favour on the basis of the document adduced and produced by the

petitioners in the Court. I am therefore inclined to interfere with the judgment and decree passed by the learned appellate Court below.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The interim order of stay granted at the time of issuance of the Rule upon operation of the impugned judgment and decree dated 21.01.1997 is hereby recalled and vacated.

The section is directed to communicate the judgment and decree to the court concerned and send down the Lower Court's Records at once.